Notification Waiver Determination

EY Australia – Australian EY Fusion business

Acquisition	Ernst & Young (**EY Australia**) applied for a notification waiver in respect of its proposed acquisition of 100% of the business and assets of EY Business Solutions Pty Ltd and EY Identity Pty Ltd (together, the **Australian EY Fusion business**), as described in the documents provided as part of the application (the **Acquisition**). The Acquisition will result in the transfer of ownership of the Australian EY Fusion business from AP Fusion Holdings (Singapore) Pte Ltd, a wholly owned subsidiary of AP Fusion LP Limited Partnership which holds such interest on behalf of the Hong Kong, Korea, Singapore and Malaysia EY member firms (**EY selling member firms**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	3 July 2026

Parties to the Acquisition	EY Australia (a partnership) forms part of the global EY network. EY Australia provides professional services including assurance, consulting, strategy, transactions and tax services in Australia. The EY Fusion business provides artificial intelligence and data analytics services, including cybersecurity services, in Australia and New Zealand. EY Australia provides these services in Australia through the Australian EY Fusion business. The EY selling member firms also form part of the global EY network and provide professional services including assurance, consulting, strategy, transactions and tax services outside of Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the Acquisition effectively represents a reorganisation within the global EY network and will not involve any change to market shares or market concentration in Australia b. there is no competitive overlap between EY Australia and the Australian EY Fusion business, and the EY selling member

	firms, in the supply of artificial intelligence, data analytics services and cybersecurity services in Australia c. there are alternative suppliers of artificial intelligence, data analytics services and cybersecurity services in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC also considered the potential application of section 51ABD of the Act. However, the applicant submitted that it was not clear that the Acquisition falls within this provision and having regard to the particular circumstances, including the consequences of non-notification in reliance on the exemption if it was found not to apply, the ACCC considered it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act